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Trump, Modi, and the illiberal consensus

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ABSTRACT

President Trump and Prime Minister Modi often invoked their two nation's claims as "oldest and largest" democracies to trumpet the naturalness of the US-India alliance. Shared democratic values was the glue that supposedly bound the two countries together. This contribution argues that the cynical and opportunistic invocation of democratic values by both governments damaged the cause of democracy globally. Both have attacked the independence of the press, civil society, and judiciary; and democratic backsliding and religious intolerance has worsened in both countries. The legitimacy of America's democratic credentials, already battered by Trump, is irreparably tainted by its embrace of Modi's India. The victim of this illiberal consensus is democracy internationally.

Introduction

After six-plus decades of awkward interaction, the rapid rise of Chinese power forced Delhi and Washington into each other's arms, eager to proclaim eternal fidelity and unshakable bonds that they promise will undergird a new strategic partnership to define this century's global order. A critical forum for this venture is the Quadrilateral Security Dialogue (Quad), a four-way collaboration of the United States and India with Australia and Japan, that purports to ensure a free and open Indo-Pacific and to defend democracy against the threat of Chinese authoritarianism.¹ This alignment and affirmation of "shared democratic values" was championed by an unlikely pair: Donald Trump, Jr., then president of the United States, and Narendra Modi, then and now, prime minister of India. Their platitudes that India and the United States are "natural allies" because they are the "largest and oldest democracies" and have shared values doubles down on those issued by their predecessors.²

This essay analyses the convergence and divergence of US-India relations under Modi and Trump. Singer's "levels of analysis" (see the introduction for more details) is useful to understand the convergences and divergences under Modi and Trump, from Modi and Trump's personal dynamics (first level of analysis with focus on the role of the decision-maker), to the role of civil society and bureaucracy in the US and India (second level of analysis with the focus on

domestic factors) in shaping relations, the rise of China (third level of analysis which focuses on the relative distribution of power and the struggle for power and influence among countries in the international system)³ and the decline of democracy in the international system. All three levels of Singer's analysis help to explain the changing nature of convergences and divergences between India and the United States; these have manifested themselves in various ways, across trade, national security, and defense. They also explain the co-creation of the patina of shared values and democracy. While the mutual democracy framing embraced by both governments suggests that a second-level of analysis might be useful, in reality, the domestic politics of the United States and India have diverged significantly on a range of issues, from immigration to economic reforms, to trade and global security (see articles in the special issue for more details). The second-level relationship is more transactional than both sides are willing to admit publicly, and the burgeoning US-India relationship is driven by a shared fear of China, rather than an agreement on shared values. We argue Singer's third level of analysis best explains the tightening relationship between the two countries, and why India's authoritarian tendencies and religious intolerance are going unremarked by the United States.

Our essay is structured as follows. We first describe the changing nature of US-India relations under Modi's and Obama's reigns, mainly because of US worries about China's rise. We then analyze how the rhetoric of "shared values" under Obama became one of "realpolitik" under Trump's "America First" policy, leading to friction over trade in particular, but which the Quad partnership helped paper over. We finally analyze how Modi's reelection in 2019 confirmed the transactional nature of the US-India relationship. Throughout we demonstrate the utility of Singer's levels-of-analysis for understanding the sources of tension and amity between the two nations.

Modi, Trump, and a twenty-first Century US-India relationship

Modi became India's prime minister in May 2014. An even more emphatic success in 2019 extended his reign. From his first days as prime minister, Modi announced India would pursue its great-power ambitions, even if that meant shedding the "hesitations of history" to embrace a deeper partnership with the United States.⁴ He visited the United States early and often, addressed a joint session of Congress, and invited President Barack Obama to be the chief guest at India's annual Republic Day celebration, which Obama accepted. These symbolic gestures were accompanied by substantive cooperation on long-sought logistical agreements to facilitate deeper military collaboration.⁵

India provided America's strategic planners with a critical piece of the puzzle of how to counter a rapidly growing, assertive China.⁶ But, Modi's personal history with the United States threatened to complicate the relationship. In 2002, when Modi was a first-term chief minister of the Indian state of Gujarat, BJP party workers and other assorted Hindu extremists carried out an anti-Muslim pogrom.

Over 1,000 Muslims were murdered while the state's law-and-order machinery was deployed far too late.⁷ International journalists and civil society activists accused Modi's government of being complicit in the 2002 pogrom, and the United States denied him a visa. Given the large Indian diaspora that has its roots in Gujarat, this was politically sensitive and illustrates the extent to which Modi was once regarded as beyond the pale by the Washington establishment.⁸ Now twelve years later, Modi was prime minister of a country that Washington dearly needed to cooperate with it in its anti-China strategy.

While observers worried that he would hold a grudge against the United States, Modi insisted that bygones should be bygones and used his first speech in America to stress the shared democratic values of the two countries.⁹ Obama took Modi on a personal tour of the Martin Luther King, Jr., memorial and later wrote a paean to Modi when the latter was named one of the world's most influential people by *Time* magazine.¹⁰ Modi's redemption tour was complete.¹¹

The Obama Administration accommodated Modi and his majoritarian tendencies because of India's utility for America's anti-China strategy. The late Ash Carter, Obama's Secretary of Defense, was a pivotal figure in bolstering relations.¹² He upgraded the Malabar military exercises to encourage deeper collaboration between the two countries' navies and shepherded the conclusion of a Logistics Exchange Memorandum of Agreement (LEMOA) which provided access to each countries' "designated military facilities for the purposes of refuelling and replenishment." Additionally, LEMOA eased "port calls, training and joint humanitarian and disaster relief efforts."¹³ This move was a signal to both China and Pakistan, which were drawing ever closer together.¹⁴

Throughout this period of growing strategic congruence, India and the United States emphasized their shared values as the core basis for their relationship through rhetoric, mutual praise, and high-profile summits. The Obama Administration, determined to work with India to contain China, was willing to genuflect to notions of shared values between the two countries, even if it defied reality.¹⁵ This approach had significant consequences for the India-US relationship in the Trump era. Firstly, the Trump Administration's approach to India was entrenched in "realpolitik" rather than attempting to frame it as a "natural" relationship between democracies. Trump's America First approach to trade and immigration had negative impacts on India and became important points of divergence between the powers. For example, the limits on high-skilled immigration and the suspension of India's Generalized System of Preferences (GSP) status were seen as direct affronts by Delhi. In turn, such rifts exposed that the US-India relationship was not built on a deep understanding of each other and was still quite transactional. Secondly, the Obama-era rhetoric hindered the US' ability to criticize India for its deteriorating democratic standards, harassment of minorities, and, more recently, refusal to align with the West over Ukraine. By creating a narrative around a natural alliance, the US has lost expertise in understanding India's nuances,

and in turn, undermined its ability to engage effectively with India on multiple fronts and on issues. Finally, the rhetoric around shared values overemphasized the close relations between the countries, when in reality, the US conducted major foreign policy decisions in South Asia without consulting India. For example, the US withdrawal from Afghanistan was done with limited Indian consultation, flaring tensions between both sides (see Stuti Bhatnagar's contribution in the special issue). Similarly, India's continued engagement with Russia for weapons procurement and now in purchasing sanctioned oil is a source of tension, underscoring the gap between the perception of friendship and ground realities (see Raj Verma's essay in the special issue).

The cynicism of shared-values rhetoric

If the Obama Administration's determination to accommodate India in the garb of "shared values" obscured the superficiality of the relationship, the naked transactionalism of the Trump Era threatened to expose it. Modi and Trump had similar approaches to domestic politics that shaped areas of convergence and divergence in their bilateral relations. First, both pursued economic and cultural nationalism as a means to support themselves domestically, as seen in "Aatmanirbhar Bharat" and "America First" respectively. Second, both recognized terrorism as a valence issue that could be used to demonize religious minorities and generate rally-around-the-flag effects; a shared understanding of Pakistan as a dishonest broker provided each a convenient scapegoat. Third, both believed that personal relationships were more important than sustained engagement across various diplomatic fronts, as seen in the "Howdy Modi" rally in Texas, and in Trump's visit to India in February 2020. These similarities in the individual personalities and worldviews of both leaders suggests some utility for Singer's first level of analysis in explaining how these two leaders specifically brought to their roles particular worldviews that shaped their foreign policies but we would argue that this approach is overdetermined by the structural imperatives of shared fears of a rising China (third-level) and the pressures of domestic electoral politics (second-level).

The role of domestic politics/factors, as anticipated by Singer's second level of analysis, is most apparent in the two nation's approaches to economic nationalism. These dynamics are discussed in greater detail by Surupa Gupta in her essay in the special issue. Yet, despite these disagreements in economic policy, Trump and Modi aligned on strengthening ties against China, and in their hostility toward Pakistan. While Modi railed against Pakistan for encouraging terror attacks against Indians and in Kashmir, Trump viewed Pakistan as a dishonest broker in managing the war in Afghanistan and because of its close relations with China. The United States wanted Pakistan to stop the Haqqani network from using Pakistan as a base to launch terror attacks. By January 2018, the US suspended approximately \$1.3 billion of aid to Pakistan for not cooperating with it on anti-terror measures.¹⁶ India on the

other hand continued to escalate tensions with Pakistan through border clashes in 2016 and an air strike inside Pakistan's borders in 2019.

Modi's reelection in 2019 laid bare the transactional nature of US-India relations. After the 2019 elections, the BJP-led government removed Jammu and Kashmir's autonomy and downgraded its status to a union territory and imposed one of the harshest communication blackouts in history there, with limited response from the United States. In December 2019, it passed the Citizenship Amendment Act (CAA), which introduced religion as a test to obtain refugee status in India, prompting some of the largest protests in India's history. These communal policies received limited criticism by the US government; this is not surprising, given the Trump administration's focus on trade, not values, as integral to developing foreign relations. The few US entities that criticized India's actions were not controlled by the executive, but arose from Congress, or autonomous institutions, which were quickly brushed aside by India's Ministry of External Affairs. This gap is noteworthy. Congressional figures such as Representatives Rashida Tlaib (D-WA) and Ilhan Omar (D-MN) have consistently posed challenging questions about India's democratic backsliding and rising religious intolerance, and are sometimes – though less vocally – joined in such criticism by other members of the House Democratic Caucus. But their efforts have not resulted in any alteration of US national security orientation to India, and at the national level the consensus that India is a critical strategic partner for US ambitions in the Indo-Pacific is unchallenged.

The various differences between Trump's America and Modi's India have been significantly smoothed over by the success of the Quad Initiative. The Quad provided the relationship an ideal institutional forum to focus on the shared strategic goal of constraining China, and, by bringing in Australia and Japan, reduced the pressure on the bilateral relationship and moved discussions away from contentious issues such as GSP status, H1-B visas, and growing protectionism in both countries. This forum provided a useful opportunity for India and the United States to reset and to reaffirm their commitment to "shared values." The Quad has positioned itself as a "democratic" alliance vying for peace in Asia, painting China as a threat, and reaffirming the natural alignment between India and the West¹⁷ (also see Anit Mukherjee's essay in the special issue). With Joseph Biden in the White House, Modi participated in the first in-person summit-level meeting of the Quad heads-of-state in September 2021 and used his speech at the UN General Assembly meetings that same month to reveal that India is the "mother of all democracies."¹⁸ The resurrection of the Quad reinforces the transactional nature of the US-India relationship, one based on strategic containment, not on shared values. It nonetheless provides a garb to reiterate the inevitability of such a grouping as "democracies" against China.

The most recent demonstration of these dynamics is the debate about whether India should be sanctioned for its purchase of the Russian S-400 military system. Per the letter of the law, India is in direct violation of the US Countering America's

Adversaries Through Sanctions Act (CAATSA), but the law also allows the US government to offer exemptions on a case-by-case basis. During the Trump administration, senior US officials made clear that they were reluctant to sanction India, stating that “[sanctions are] the last thing we want to do with a significant partner. We don’t want to degrade their defence capabilities.”¹⁹ Biden inherited the Indian S-400 problem but a bipartisan effort to shield India from sanctions has solidified even as a few congressional Democrats have signaled their opposition. But, as has been true over the past decade, their voices are destined to be in the minority, as the overriding imperative of countering Chinese power elevates the bilateral relationship over all other considerations.

Flailing democratic standards

Perhaps because of the obvious fealty to realpolitik doctrine, the compulsive rhetoric of shared democratic values jars. India’s democratic credentials have taken a beating during Modi’s tenure,²⁰ with the country being “downgraded” to “partly free” and “electoral autocracy” by Freedom House and the V-DEM project respectively.²¹ India remains one of the most dangerous countries in the world to be a journalist and the government has restricted press freedom significantly. Civil society organizations have been under significant pressure and changes to party finance regulations have made election financing opaque. Judicial independence has declined, and anti-Muslim and anti-Dalit discrimination has increased.²² The U.S. Commission on International Religious Freedom has repeatedly cited Modi’s India for its policies, and, since 2020, “has recommended that India be designated a Country of Particular of Concern, or CPC, due to the Indian government’s promotion of Hindu nationalism, and engagement and facilitation of systematic, ongoing, and egregious violations of religious freedom.”²³ Nationwide protests against the discriminatory National Register of Citizens and CAA were only halted by the lockdown imposed by the government in response to the COVID-19 pandemic.²⁴

It is against this backdrop that the rhetoric of shared democratic values is properly understood. Associating himself with the leading democratic powers of the world and sharing billing as the “oldest and largest democracies” with the United States insulates Modi against his domestic critics who accuse him of engineering India’s democratic backsliding. Insinuating India more firmly into the Quad and its democratic pretensions forces the other members of that grouping to avoid overt criticisms of India’s anti-minority and anti-democratic record under Modi. To do otherwise is to make apparent that the ostensible normative premise of the Quad is but a cover for anti-China balancing.

Similar dynamics were at play for the Trump administration, which spent most of its embattled four years fending off critics who accused Trump of cozying up to dictators, most prominently Russia’s Vladimir Putin; undermining democracy at home by his constant attacks on the press and judiciary;

and relentless race-baiting and xenophobia. Trump seized early that he could stoke racial resentment by indulging in risible China-bashing. He initiated significant anti-China tariffs and, once the COVID-19 pandemic was underway, he used his bully pulpit to amplify unsubstantiated Sinophobic claims about the virus's origin and spread. Trump's inherent skepticism about international trade led him to withdraw the United States from the Trans-Pacific Partnership (TPP). He also initiated a "mini-trade-war" against India, accusing India of being one of the most protectionist countries. Yet, simultaneously, he established a strong personal connection with Modi, even appearing with the prime minister at an arena-rally in Houston, Texas, at which Modi offered a ringing endorsement of Trump's reelection campaign.²⁵

Trump also used nationalism as a way to rally his base and was averse to adhering to democratic norms to consolidate and hold onto power. Within days of entering office in 2017, he enacted a travel ban on citizens from several Muslim-majority countries such as Iran, Iraq, Libya, Somalia, Sudan, Syria, and Yemen and suspended the US' refugee program, going against long-standing democratic traditions of openness that the United States preached. When white supremacist attacks occurred, he was slow to condemn those attacks, if at all, raising a revealing parallel to Modi whose studied silences over anti-Muslim violence and extra-judicial killings has become a calling card of his rule. The cumulative impact of Trump's relentless attacks on racial and religious minorities and constitutional values, and his elevation and endorsement of White Christian Nationalism, was laid bare on January 6, 2021, when his supporters stormed the US Capitol in an attempt to overturn Joe Biden's election victory. Democracy and religious freedom were irrelevant to Trump, who reciprocated by defending Modi against his critics, and his administration issued yet more joint statements hailing the two countries' shared commitment to democracy.²⁶

The extent of this compact was evident during Trump's visit to India in February 2020 when riots erupted in Delhi, the country's capital. The riots were provoked in direct response to protests against the CAA which began in December 2019. Before the CAA was passed, the United States Commission on International Religious Freedom (USCIRF) had already raised concerns about its discriminatory nature. Subsequently, many Democrats condemned the act.²⁷

Nonetheless, the CAA and Kashmir's downgrade to a union territory were not discussed during Trump's visit. Meanwhile, the anti-CAA protests gathered steam. Women protestors blocked Jaffrabad metro station in Northeast Delhi. Riots broke out after several BJP leaders demanded police action against the protestors. Pro-CAA protestors stormed the site and riots broke out in surrounding neighborhoods for three days, while just thirty miles from the violent epicenter, Trump's state visit continued with fanfare and without interruption or alteration to schedule. Neither Modi nor Trump condemned the violence while it was on-going, with Modi calling for peace only after Trump left India. In the midst of the riots, Trump, in a rally in Ahmedabad,

praised India's tolerant nature: "India is a country that proudly embraces freedom, liberty, individual rights, the rule of law and the dignity of every human being,"²⁸ The protests were widely condemned in the West with many criticizing Trump for not taking a stance on the riots. The USCIRF condemned "brutal and unchecked violence" in Delhi and urged India to "take serious efforts to protect Muslims and others targeted by mob violence."²⁹ Inaction appears to be a manifestation of this shared understanding between Trump and Modi to use the garb of democracy and shared values to pursue their domestic policies and rally their nationalist bases.

Conclusion

Reflexive rhetorical offerings before the altar of democracy is definitive of American foreign policy. Even as the United States has long partnered with non-democracies when geopolitical considerations necessitated them and undermined democratic regimes when they were not sufficiently pro-American, a core facet of American exceptionalism is its identity as a beacon for global democracy.³⁰ Biden's desire to host a leader's summit of democracies is the latest example.³¹ This compulsion explains why the United States ignores the anti-democratic trends in India while enveloping India in a deeper embrace bilaterally and in the Quad. A Singerian third-level justification of its anti-China balancing policy does not sit comfortably with a self-image that requires that America convince itself that it is on the side of angels, a city on a hill, the last best hope for the earth.³² That India is a willing partner at this point in time is tautological proof that India too must, by definition, be an angel.

Democracy around the world is in a genuine crisis. But the U.S.-India bilateral and multilateral emphasis on the need for a democratic alliance to combat authoritarian influence ignores today's empirical realities: few democracies collapse outright due to coups and external intervention; most rot from within as incumbents enable democratic backsliding by stealth.³³ Ignoring the steady drip of anti-democratic actions that occur in erstwhile democracies such as India creates an ironic illiberal consensus in the name of democracy promotion. It would be a pyrrhic victory indeed if America's desire to counter the Chinese authoritarian governance model led to the erosion of freedoms and liberties at home and in its "natural ally," India.

Notes

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